

Constituting a People at the Edge of the State

Charland's constitutive rhetoric across Québec, Alberta 2026, and the US true-America framing.

Working draft, subject to revision.

Maurice Charland argued in 1987 that a political movement does not address a people that already exists. It calls that people into being, and in the same gesture it hands them a future they are told they already wanted. Three movements now running at the edge of two states let us ask where that account holds and where it strains.

1. Charland's apparatus

Charland's account of constitutive rhetoric fuses two inheritances.¹ From Burke it takes identification: persuasion works by making an audience consubstantial with a position, sharing its substance before sharing its conclusions.² From Althusser it takes interpellation: a discourse hails a subject into place, and the subject is already standing there by the time the call can be questioned.³ McGee supplies the object both operations produce. "The people" is a rhetorical achievement, a fiction that becomes real in being invoked, rather than a standing population waiting to be described.⁴

Charland draws three effects from this. A constituted people is given a transhistorical identity, a continuous subject that runs back through ancestors and forward through descendants. It is given a collective agency, a capacity to act as one body. And it is given a telos, an end the narrative presents as the people's own completion. Sovereignty, in the Québec case, was offered to the people québécois as the act that would finish them. The reader who accepts the address has, in Charland's phrase, little choice but to act as the narrative requires.

2. Québec, the canonical case

Québec is where the model was built and where it fits most cleanly. The substrate was thick: a language, a religious history, a territory, and a long memory of conquest. The 1980 referendum lost 59.6 to 40.4, and the 1995 referendum lost by a single point, 50.58 to 49.42.⁵ The closeness of 1995 is the measure of how fully the constitutive work had taken. A people had been called into being firmly enough that half of a province would vote to complete it.

Two features of Québec matter for the cases that follow. The telos pointed forward, toward a sovereignty the people did not yet hold. And the identity was thick enough that the telos seemed to follow from it, so that being québécois and wanting sovereignty could be presented as one disposition rather than two.

3. Alberta 2026, the limit case

Alberta runs the same operation on thinner material, and the strain shows in three places.

3.1 A thin substrate, and grievance in place of ethnos

Alberta became a province in 1905. There is no centuries-deep ethnos to invoke, so the constitutive appeal is built from economics and grievance: equalization, pipelines, a federal government cast as extractive. The premier's address to the province states the case in those terms.⁶ The "people" here is assembled around injury rather than inheritance, which is a weaker adhesive and a more reversible one.

3.2 A detachable telos

In Québec the identity and the secessionist end were fused. In Alberta they come apart, and the rhetoric itself records the separation. The governing instrument is titled the Alberta Sovereignty within a United Canada Act, a sovereignty claim that names its own limit in its own title.⁷ The October 19, 2026 ballot question completes the pattern. It does not ask Albertans whether to separate. It asks, in two options, whether the government should begin a legal process toward a future binding referendum, and the result is not binding.⁸ The telos has been held back a step from the act that would deliver it.

Polling confirms that the identity and the conclusion are detachable in the population, not only on paper. About three in five Albertans say they would vote No on the official question, with roughly 35 percent Yes, and support to stay rises to about two-thirds when the question is put as a plain choice to leave or remain.⁹ Many who hold the Alberta grievance identity decline its secessionist telos. Charland's model assumes the telos travels with the identity. Here it does not, and a constitutive reading has to treat the end as a separable component rather than an entailment.

3.3 Collision with a prior people

The sharpest limit is juridical. Treaties 6, 7, and 8 were signed between 1876 and 1899, before Alberta existed.¹⁰ They constitute a people already, with a standing claim that does not dissolve when a newer "people" is summoned over the same ground. On May 13, 2026, the Court of King's Bench quashed the Elections Alberta approval of the separation petition, holding that the Crown had failed its duty to consult the Athabasca Chipewyan First Nation and others, because separation would adversely affect Treaty rights.¹¹ The 1998 Secession Reference had already established that unilateral secession is unconstitutional and that a clear result obliges negotiation.¹² Constitutive rhetoric can call a people into being. It cannot, on its own, clear a prior people off the land it claims, and when that prior people holds a juridical title the constitutive appeal meets a wall it cannot talk through.

Québec rehearsed this in 1995. Six days before the provincial vote, the Cree of northern Québec held their own referendum and voted 96.3 percent to remain in Canada.¹³ One constituted people refused to be folded into another. Alberta's King's Bench ruling is the same collision reaching a court.

4. The US true-America framing, the restorationist vector

The American case inverts the direction of the telos. The Québec and Alberta appeals point forward, to a sovereignty not yet held. The “No Kings” and true-America register points backward, to a people said to already exist and to have been dispossessed, an America to be restored rather than founded.¹⁴ The constitutive move is the same, calling a people into being, but the telos is recovery, and the people is figured as the legitimate original whose country was taken.

The movement also constitutes itself by a number. The “3.5 percent rule,” drawn from Chenoweth and Stephan’s research on nonviolent mobilization, is invoked as a self-description, a people asserting that it has reached or will reach the threshold at which it prevails.¹⁵ The empirical finding and its rhetorical redeployment are worth keeping apart. As constitutive rhetoric the number does work the research never claimed for it, supplying a constituted “we” with proof of its own scale.

5. Synthesis: vector, substrate, and the prior claim

The three cases do not rank constitutive rhetoric as strong or weak. They locate three variables the original model holds fixed.

The first is the vector of the telos. Forward in Québec and Alberta, backward in the US framing. Charland’s case was forward-pointing, and the restorationist direction is a second mode the apparatus runs equally well.

The second is the thickness of the substrate. Where an ethnos is thick, as in Québec, identity and telos fuse and the appeal is durable. Where it is thin and built from grievance, as in Alberta, the telos detaches, and a population can hold the identity while declining its conclusion. Detachability is the signature of a thin substrate.

The third is the prior claim. Constitutive rhetoric assumes open ground on which to summon a people. Where a prior people already holds the ground under treaty, the appeal does not merely meet a rival argument. It meets a juridical limit, and in both the Cree counter-referendum and the Alberta ruling that limit held.

Charland’s account remains the right instrument for reading how each movement makes its people. What the three cases add is that the people, once made, does not always carry the future it was made for, and cannot always occupy the ground it claims.

Notes

- Charland, “Constitutive Rhetoric: The Case of the Peuple Québécois,” QJS 73 (1987). doi.org/10.1080/00335638709383799.
- Burke, *A Rhetoric of Motives* (1950).
- Althusser, “Ideology and Ideological State Apparatuses” (1970).
- McGee, “In Search of ‘the People’,” QJS 61 (1975). doi.org/10.1080/00335637509383289.

- Élections Québec, 1995 referendum results; 1980 referendum.
- Smith, "Premier's Address to the Province," Alberta.ca.
- Alberta Sovereignty within a United Canada Act, SA 2022.
- CBC News, formalized Oct. 19 separation question wording, 2026.
- Angus Reid Institute, Alberta referendum-question polling, 2026.
- Numbered Treaties 6, 7, and 8 (1876–1899).
- Athabasca Chipewyan First Nation v Alberta (Chief Electoral Officer), King's Bench, May 13, 2026; CBC News.
- Reference re Secession of Quebec, \[1998\] 2 SCR 217.
- Cree counter-referendum, October 24, 1995.
- "No Kings protests," 2025–2026.
- Chenoweth and Stephan, 3.5% rule.

Full citations and links in the Literature Review.